

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT PROHIBITING THE ENFORCEMENT OF CERTAIN FEDERAL
5 FIREARMS LAWS; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE AND A RETROACTIVE
6 APPLICABILITY DATE."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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10 NEW SECTION. **Section 1. Prohibition of certain federal firearms laws.** A federal law, rule,
11 executive order, or regulation pertaining to firearms enacted after November 9, 1889, that is more restrictive
12 than Montana laws pertaining to firearms may not be enforced by a peace officer, state employee, or employee
13 of a political subdivision.

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15 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an
16 integral part of Title 45, chapter 8, part 3, and the provisions of Title 45, chapter 8, part 3, apply to [section 1].

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18 NEW SECTION. **Section 3. Severability.** If a part of [this act] is invalid, all valid parts that are
19 severable from the invalid part remain in effect. If a part of [this act] is invalid in one or more of its applications,
20 the part remains in effect in all valid applications that are severable from the invalid applications.

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22 NEW SECTION. **Section 4. Effective date.** [This act] is effective on passage and approval.

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24 NEW SECTION. **Section 5. Retroactive applicability.** [This act] applies retroactively, within the
25 meaning of 1-2-109, to a federal law, executive order, rule, or regulation adopted or enacted on or after
26 November 8, 1889, or a new and more restrictive interpretation of a law that existed on November 8, 1889.

27 - END -